

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patrick Browne	Team: Squad #05	CCRB Case #: 201500911	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 02/01/2015 2:50 AM	Location of Incident: Broadway between West 139th Street and West 140th Street	18 Mo. SOL 8/1/2016	Precinct: 30		
Date/Time CV Reported Sun, 02/08/2015 12:53 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 02/08/2015 12:53 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Gerardo Urbaez	02356	947561	030 PCT
2. POM Fidel Santiago	00929	951205	030 PCT
3. POM Taras Kolosiej	21722	882620	030 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Waddy Santiago	24807	927488	030 PCT
2. POF Francheska Colon	10033	956538	030 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Gerardo Urbaez	Abuse: PO Gerardo Urbaez frisked § 87(2)(b)	A . Substantiated
B . POM Gerardo Urbaez	Abuse: PO Gerardo Urbaez searched § 87(2)(b)	B . Unsubstantiated
C . POM Fidel Santiago	Abuse: PO Fidel Santiago frisked § 87(2)(b)	C . Substantiated
D . POM Fidel Santiago	Abuse: PO Fidel Santiago searched § 87(2)(b)	D . Unsubstantiated
E . POM Fidel Santiago	Abuse: PO Fidel Santiago searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	E . Substantiated
F . POM Gerardo Urbaez	Abuse: PO Gerardo Urbaez questioned § 87(2)(b)	F . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

At approximately 2:50 a.m. on February 1, 2015, § 87(2)(b) was driving southbound on Broadway near West 139th Street in Manhattan when he and a friend in the passenger's seat—§ 87(2)(b) were pulled over by two officers identified through investigation as PO Gerardo Urbaez and PO Fidel Santiago of the 30th Precinct. After approaching the car and requesting § 87(2)(b) license and registration, PO Urbaez asked § 87(2)(b) to step out. § 87(2)(b) complied with both requests. PO Urbaez then frisked § 87(2)(b)'s entire body (**Allegation A**) and allegedly searched his pockets (**Allegation B**), though he removed no objects. Over the next several minutes, PO Urbaez requested that § 87(2)(b) submit to a breathalyzer test and even called for an additional officer—PO Taras Kolosiej of the 30th Precinct—who arrived amidst the conversation and reiterated the requests for § 87(2)(b) to take the exam. After § 87(2)(b) repeatedly refused, PO Urbaez allegedly frisked him once more (**subsumed within Allegation A**) before instructing him to return to the vehicle, which he did.

After several more minutes, both § 87(2)(b) and § 87(2)(b) were asked to step out of the car. Meanwhile, PO Santiago, who had initially approached the passenger's side, requested that § 87(2)(b) exit the car. As § 87(2)(b) complied, PO Santiago frisked his entire body (**Allegation C**) and allegedly entered his pockets to remove his wallet and license (**Allegation D**). Immediately thereafter, PO Santiago entered the front passenger's seat and searched at least the nearby areas including the center console (**Allegation E**). Without recovering anything from the car, the civilians waited at the rear while PO Urbaez issued a summons to § 87(2)(b) for § 87(2)(b). Around this time, PO Urbaez also instructed § 87(2)(b) to provide his identification (**Allegation F**). After the summons was issued, the civilians departed.

Mediation, Civil and Criminal Histories

Although mediation was presented to § 87(2)(b) he declined and instead chose for the case to be investigated. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)
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§ 87(2)(b)

As of April 3, 2015, no notice of claim has been filed in relation to this incident (encl. 24A).

Civilian and Officer CCRB Histories

- PO Urbaez has been a member of the NYPD for six years and has been a subject in two prior cases (encl. 6A). § 87(2)(g)
- PO Santiago has been a member of the NYPD for three years and has not been a subject in any prior cases (encl. 6B).
- Det. Kolosiej has been a member of the NYPD for thirty one years and has been a subject in eleven prior cases (encl. 6C). § 87(2)(g)
- This is the first CCRB complaint for § 87(2)(b) (encl. 7A) or § 87(2)(b) (encl. 7B).

Potential Issues

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) stated that the officer who stood by his window and searched the vehicle as separate from the officer who frisked and searched his person. However, as PO Santiago acknowledged that he himself took all of these actions, it was determined that § 87(2)(b) may have been mistaken about there being another officer present and that PO Santiago is the subject of both the search of the vehicle as well as the frisk and search of § 87(2)(b) § 87(2)(g).

Allegations Not Pleaded

- § 87(2)(g)

Investigative Findings and Recommendations

Allegation A— Abuse of Authority: PO Gerardo Urbaez frisked § 87(2)(b)

Allegation C—Abuse of Authority: PO Fidel Santiago frisked § 87(2)(b)

Allegation E—Abuse of Authority: PO Fidel Santiago searched the car in which § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that after requesting § 87(2)(b)'s license and registration, PO Urbaez immediately asked him to step out of the car before frisking him. It is similarly undisputed that while PO Urbaez was trying to get § 87(2)(b) to take a breathalyzer test, PO Santiago asked § 87(2)(b) to also step out, frisked him, and searched at least part of the vehicle.

Although § 87(2)(b) (encl. 12A-G) and § 87(2)(b) (encl. 13A-F) both denied that § 87(2)(b) had consumed any alcohol that day or was intoxicated, PO Urbaez (encl. 15A-F) testified that he observed § 87(2)(b)'s vehicle almost hit the median as he quickly changed lanes and that while standing near the driver's window, he smelled an odor of alcohol and saw that § 87(2)(b)'s eyes were glassy. Although PO Santiago (encl. 16A-E) did not recall if he saw the alleged reckless driving, he stated that he did not smell alcohol on § 87(2)(b) when he stepped out of the car, though he did hear slurred speech, saw glassy eyes, and noticed verbal noncompliance. PO Kolosiej (encl. 17A-D) stated that when he arrived midway through the incident to administer a breathalyzer test, he observed § 87(2)(b)'s watery, bloodshot eyes as well as fidgety behavior. Video footage of the incident (encl. 14A-G) confirmed that § 87(2)(b) did not display any slurred speech and was fully coherent when speaking. § 87(2)(g)

PO Urbaez stated that given the observed violation, the odor of alcohol, and the glassy eyes, he believed § 87(2)(b) to be intoxicated. Therefore, in order to ensure his own safety because any civilian could be carrying a weapon, he frisked his entire body. PO Urbaez confirmed that § 87(2)(b) had made no threatening movements or statements. He did not recall if there were any bulges or outlines on his clothing, but he did not feel any objects resembling a weapon. Instead, PO Urbaez explicitly confirmed that there were no additional factors that precipitated the frisk.

Although PO Urbaez did not see what was happening on the passenger's side of the vehicle, PO Santiago stated that while they were speaking to § 87(2)(b) at the rear of the car, he observed the vehicle rock slightly back and forth and saw § 87(2)(b) in the front seat turn to look back at them before shifting his body towards the driver's seat. Because it was so dark, PO Santiago could not describe the movement in any more detail and saw nothing specifically threatening. However, in order to ensure that he was not concealing a weapon, he instructed § 87(2)(b) to exit the car and frisked his entire body. When asked why he conducted the frisk, he stated that there were no additional reasons other than the movement and that any civilian could have a weapon and added, "Anyone we talk to, we frisk." PO Santiago did not recall if he saw any bulges or suspicious outlines on § 87(2)(b) and did not recall if he felt any suspicious objects, though nothing was recovered as a result.

Furthermore, PO Santiago cited the same reasoning for his search of the area around the passenger's seat, including the center console. PO Santiago stated that he did not recall if he saw any suspicious objects before entering the vehicle, though he did smell alcohol after he was inside. He did not recover any objects as a result of his search. Although both PO Urbaez and PO Kolosiej confirmed that § 87(2)(b) could have been arrested and taken back to the stationhouse for refusing to take the breathalyzer test, PO Urbaez did not take such action and ultimately released him with only a summons for § 87(2)(b).

During a traffic stop, an officer may order a passenger out of a vehicle as a precautionary measure without reasonable suspicion that that passenger poses a safety risk. However, in order to frisk an occupant once out of the vehicle, standards are the same as those in a street encounter and an officer must have reasonable suspicion of violent criminal activity or a reasonable fear that the individual is armed. People v. Barriera, 192 A.D.2d 153 (1st Department 1993) (encl. 1A-C). In the absence of any additional specific factors, looking over one's shoulder or even ducking down inside a vehicle are considered innocuous behavior that would not provide reasonable suspicion of criminality or justification to search a vehicle. People v. Rossetti, 148 A.D.2d 357 (1st Dept. 1989) (encl. 2A).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)

Therefore, it is recommended that **Allegations A, C, and E** be closed as ***Substantiated***.

Allegation B—Abuse of Authority: PO Gerardo Urbaez searched § 87(2)(b)

Allegation D—Abuse of Authority: PO Fidel Santiago searched § 87(2)(b)

Both § 87(2)(b) and § 87(2)(b) alleged that immediately after being frisked by PO Urbaez and PO Santiago, respectively, the officers entered their pockets. Although § 87(2)(b) reported that PO Urbaez did not remove any objects, § 87(2)(b) alleged that PO Santiago retrieved his wallet and identification. Conversely, although PO Urbaez and PO Santiago acknowledged the frisks, they both denied entering pockets or searching their respective detainees. PO Santiago similarly denied removing § 87(2)(b)'s wallet or identification from his pocket. PO Kolosiej denied witnessing any frisks or searches while on scene.

§ 87(2)(g)

Therefore, it is recommended that **Allegations B and D** be closed as ***Unsubstantiated***.

Allegation F—Abuse of Authority: PO Gerardo Urbaez questioned § 87(2)(b)

§ 87(2)(g) video footage confirmed that after § 87(2)(b) was removed from the car and the vehicle search had begun, PO Urbaez asked § 87(2)(b) to provide his identification. As detailed below, neither PO Urbaez nor PO Santiago completed stop and frisk reports for their respective civilians, nor did either officer mention § 87(2)(b) in their memo books (encl. 15A-B; encl. 16A-B).

In order to make a request for information, such as asking for identification, an officer must have an objective credible reason to do so, even if it is not indicative of criminality. People v. Hollman, 79 N.Y.2d 181 (1992) (encl. 3A-H).

§ 87(2)(g)

Therefore, it is recommended that **Allegation F** be closed as ***Substantiated***.

§ 87(4-b), § 87(2)(g)

§ 87(4-b) § 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

POD: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date